

the appellant to file a statement indicating the subject-matter to be searched. The board pointed out that the board was applying the EPC and associated provisions as they stood. The Rules Relating to Fees did not provide for a refund of the search fee in case of a no-search declaration under R. 63 EPC. R. 63(2) EPC states that such a no-search declaration shall be considered as the European search report. Further, the fact that the search division did not comply with R. 63(1) EPC (failure to communicate with the appellant) did not alter the legal situation. The search division's actions were not open for review by the board (Art. 106(1) EPC) and, for the same reason, neither was the search division's reliance on the notice from the EPO dated 1 October 2007 concerning business methods. Therefore, the board considered that the request for a (partial) refund of the search fee was inadmissible.

In T 1895/13 the board concurred with the reasoning in points 24 to 29 of the Reasons in T 2249/13; it could only apply the EPC and associated provisions as they were. Art. 9(1) Rules relating to Fees provided for a refund of the search fee only in the case that the European patent application was withdrawn at a time when the Office had not yet begun to draw up the search report, but not in the case of a no-search declaration under R. 63 EPC. Furthermore, the search division could be assumed to have analysed the set of claims before taking the decision to issue a no-search declaration, and, hence, it could not be argued that the EPO had been unjustly enriched. The board explained that it was also not competent to decide on claims for compensation in respect of a loss or damage allegedly caused by the EPO in the course of patent grant proceedings (see J 14/87, OJ 1988, 295).

4.1.3 Declaration under Rule 63(2) EPC

a) Notoriously well-known technical features

According to the case law of the boards of appeal an examining division need not carry out an additional search if the technical features of the claims are notoriously well known. In particular, it is possible to raise an objection of lack of inventive step without documented prior art (see e.g. T 939/92, OJ 1996, 309; T 1242/04, OJ 2007, 421; T 1411/08, T 1895/13). That should be allowable where the objection was based on "notorious knowledge" or indisputably forms part of the common general knowledge. In such cases it would be inappropriate to carry out an additional search for documented prior art on purely formal grounds (T 1242/04, OJ 2007, 421; see also T 690/06, T 698/11, T 779/11).

In T 359/11 the board held that where the relevant search authority had stated, either in a search report or in a declaration that no search report would be established, that it was not necessary to cite any documentary evidence of the prior art on the grounds that all of the technical features of the claimed invention were notorious, it was always incumbent upon the examining division to consider whether an additional search was necessary. The criterion to be applied was that if the invention as claimed contained at least one technical feature which was not notorious, the application should normally not be refused for lack of inventive step without performing an additional search (see T 690/06). In the case in hand, the choice of the examining division to decide on the issue of inventive step without

performing an additional search could only be considered justifiable if the claimed subject-matter comprised no technical features which were non-notorious.

In T. 2467/09 the examining division refused the application for lack of inventive step without making reference to documentary evidence. In fact, no prior art search was carried out in either the international phase or the European phase. The board noted that according to the established case law of the boards of appeal, an application should normally not be refused for lack of inventive step as long as no search had been performed. An exception may however be made in cases where the objection was based on knowledge that was "notorious" or indisputably formed part of the common general knowledge. The board pointed out that while it could not be reasonably disputed that server systems providing web pages were known at the priority date of the application, in its view this was less evident for "technologies for the dynamic building of web pages". While such technologies were probably well-known in 2008, which was when the examining division for the first time explicitly relied on their existence, it had to be kept in mind that the field of web technology had evolved considerably in the eight years following the filing of the priority application in April 2000. The board noted that the argument that certain knowledge was notorious was only a sufficiently cogent reason if it satisfied any reasonable addressee, i.e. if, at the time the argument was to be assessed by the applicant and, in case of an appeal, by a board of appeal, it could not be reasonably disputed that that knowledge formed part of the common general knowledge of the skilled person at the effective filing date. In the case in hand, the board held that without documentary evidence, the examining division's reasoning failed to convince in this respect. The board remitted the case to the department of first instance for further prosecution. The examining division was to carry out an additional search on the basis of the claims, including the dependent claims. See also T. 283/12.

b) Subject-matter not having technical character

In T. 1242/04 (OJ 2007, 421) the board noted that R. 45 EPC 1973 applied to cases which did not comply with the provisions of the EPC to such an extent that it was not "possible" to carry out a "meaningful search" into the state of the art on the basis of all or some of the claims. Thus a R. 45 EPC 1973 declaration was allowed only where a search was not possible. In other cases the search division would draw up a partial search report, "so far as is practicable". In the board's view, R. 45 EPC 1973 related only to the practicability of a search and not to the potential relevance of its results in subsequent substantive examination. The board noted that it was not evident that claims directed only to technical features that the search division deemed "trivial" could prevent a meaningful search into the state of the art, which in fact ought to be particularly simple in such a case. The board held that where the application's subject-matter had non-technical aspects, a declaration under R. 45 EPC 1973 might be issued only in exceptional cases in which the claimed subject matter clearly had no technical character. In the board's view, however, it was not always necessary in such circumstances to carry out an additional search in the documented prior art. See also T. 2948/18.

The board in T. 779/11, referring to T. 1242/04, pointed out that although R. 45 EPC 1973 was not identical to Art. 17(2)(a) PCT (in conjunction with R. 39.1 PCT), there appeared

to be no good reason why the same findings should not apply to the issuing of a declaration under Art. 17(2)(a) PCT. Cf. T.918/14.

- c) Statement indicating the subject-matter to be searched not sufficient to overcome the deficiency noted under Rule 63(1) EPC

In T.1653/12 the board pointed out that the applicant's statement did not provide a basis for the search examiner to perform a meaningful search. The particular wording used therein ("and/or") left it entirely open which of the two alternatives claimed should be searched. Hence, it was plausible that a meaningful search could not be made.

4.2. Non-payment of further search fees under Rule 64 EPC

R. 64(1) EPC (former R. 46 EPC 1973) was amended by decision of the Administrative Council (OJ 2009, 299), and entered into force on 1 April 2010.

Under R. 64(1) EPC if the EPO considers that the European patent application does not comply with the requirement of unity of invention, it shall draw up a partial search report on those parts of the application which relate to the invention, or the group of inventions within the meaning of Art. 82 EPC, first mentioned in the claims. It shall inform the applicant that, for the European search report to cover the other inventions, a further search fee must be paid, in respect of each invention involved, within a period of two months. The European search report shall be drawn up for the parts of the application relating to inventions in respect of which search fees have been paid.

In G.2/92 (OJ 1993, 591) the Enlarged Board stated that an applicant who failed to pay the further search fees for a non-unitary application when requested to do so by the search division could not pursue that application for the subject-matter in respect of which no search fees had been paid. Such an applicant must file a divisional application in respect of such subject-matter if he wished to seek protection for it. The Enlarged Board also stated that if the applicant had not availed himself of the opportunity to have the search results on the other inventions included in the search report because he had paid no additional search fees in response to the invitation under R. 46(1) EPC 1973, he would be taken to have elected that the application should proceed on the basis of the invention which had been searched. However, non-payment was not to be equated with the abandonment of parts of the application.

In T.998/14, however, the board noted that decision G.2/92 did not necessarily apply for features which were disclosed in the original application documents in connection with an invention or group of inventions in respect of which a search had been made.

5. Amendments relating to unsearched subject-matter – Rule 137(5) EPC

5.1. General issues

R. 137(5) EPC as in force from 1 April 2010 (OJ 2009, 299) (former R. 137(4) EPC and R. 86 (4) EPC 1973) relates to amendments made during the grant procedure which are

under the control of the examining division. It stipulates that amended claims may not relate to unsearched subject-matter which does not combine with the originally claimed invention or group of inventions to form a single general inventive concept. Nor may they relate to subject-matter not searched in accordance with R. 62a or R. 63 EPC.

In T 2459/12 what was at issue was whether the invention was "unsearched" within the meaning of R. 137(5) EPC, which limits the choice of subject-matter which may be put forward by way of amendment for examination in the European procedure. The board stated that it was clear that the only interpretation of R. 137(5) EPC was that, within the meaning of R. 137(5) EPC, "unsearched" means "unsearched by the EPO". It was consequently the view of the board that where, following the drawing up of a supplementary European search report by the EPO, an applicant files amended claims seeking protection for subject-matter not covered by the supplementary European search as a result of the application of R. 164(1) EPC as then in force, an objection under R. 137(5) EPC should be raised (see also T 1871/14).

5.2. The purpose of Rule 137(5) EPC

The wording of R. 137(5), first sentence, EPC is the same as that of R. 86(4) EPC 1973. R. 86(4) EPC 1973 (with effect from 1 June 1995), was intended to prevent amendments of the application which circumvent the principle that a search fee must always be paid for an invention presented for examination. The board in T 274/03 explained that R. 86(4) EPC 1973 stopped applicants switching to unsearched subject-matter in the reply to a communication from the examining division and made means available for the EPO to react when different subject-matter was claimed not simultaneously but in sequence as was the case when the applicant drops the existing claims and replaces them with originally non-unitary subject-matter extracted from the description. See also T 442/11, T 509/11, T 1285/11, T 2334/11, T 145/13, T 1485/13, T 820/15.

In T 443/97 the board stated that R. 86(4) EPC 1973 (now R. 137(5) EPC) concerned examination proceedings, and particularly those cases in which no further search fees requested by the search division for non-unitary subject-matter had been paid by the applicant. The purpose of R. 86(4) EPC 1973 was to exclude any amendment which circumvented the principle according to which a search fee must always be paid for an invention presented for examination. The board noted that unity of invention was a requirement of an administrative nature and that the administrative purposes of this requirement were fulfilled when the examination procedure had been concluded, i.e. when the patent had been granted (see G 1/91, OJ 1992, 253). Therefore, R. 86(4) EPC 1973 was not relevant for the opposition case in hand.

5.3. Applicability of Rule 137(5) EPC

5.3.1 General issues

R. 137(5) EPC states: "Amended claims may not relate to unsearched subject-matter which does not combine with the originally claimed invention or group of inventions to form a single general inventive concept. Nor may they relate to subject-matter not searched in accordance with Rule 62a or Rule 63".

According to well-established case law, R. 137(5) EPC does not apply when the applicant has not paid the search fee in respect of a non-unitary invention relating to the originally filed claims (see T. 708/00, OJ 2004, 160; T. 1285/11).

In T. 613/99 the board stated that R. 86(4) EPC 1973 (now R. 137(5) EPC) referred to a particular situation, i.e. where subject-matter was described but not claimed in the original application and was therefore not searched; where that subject-matter failed to meet the requirement for unity of invention with the matter claimed in the application; and where, following the search report, the applicants had filed fresh claims relating only to this unsearched matter. In this situation, the patentability of these fresh claims could not be examined in the context of the original application, since this would have amounted to a derogation from the principle endorsed in G 2/92 (OJ 1993, 591), according to which the invention to be examined had to be an invention for which a search fee had been paid. In the case in hand, the situation was entirely different. The claimed subject-matter in the application at issue had been claimed in the original application and had therefore been searched, even if it had not been possible to carry out a meaningful search. Moreover, the invention forming the subject of claims 1 and 2 of the application at issue was substantially the same as that which formed the subject of claims 1 and 2 of the original application. In such a situation, if the examining division rejected a finding of the search division regarding matter excluded from the search, a so-called additional European search could be carried out at the request of the examining division.

5.3.2 Extent of the European search report

The extent of the search for prior art to be conducted for the purposes of the European search report is defined in Art. 92 EPC, which states that the European search report shall be drawn up by the EPO "on the basis of the claims, with due regard to the description and any drawings". In principle, and in so far as possible and reasonable, the search should cover the entire subject-matter to which the claims are directed or to which they might reasonably be expected to be directed after they have been amended (Guidelines B-III, 3.5 – March 2022 version).

In T. 708/00 (OJ 2004, 160) the application was refused by the examining division, principally on the grounds that the new claims were not allowable under R. 86(4) EPC 1973. The board stated that the provisions of Art. 92(1) EPC 1973 must not have the effect of limiting the search solely to the subject-matter of the claims, even if this would simplify matters for the search division. Nor did this imply that the sole purpose of the description and drawings was to help interpret the claims. It did, however, mean that